

of some other legal duty and the emotional distress is proximately caused by that breach of duty. Even then, with rare exceptions, a breach of the duty must threaten physical injury, not simply damage to property or financial interests.” (*Ibid.*)

“[N]egligence is not among the theories of recovery generally available against insurers.” (*Sanchez v. Lindsey Morden Claims Services* (1999) 72 Cal.App.4th 249, 254.) Generally, an insured seeking damages for the mishandling of a claim must allege more than mere negligence. (*Adelman v. Associated Int'l Ins. Co.* (2001) 90 Cal. App. 4th 352, 369.) Such claims must be based on a bad faith, deliberate act rather than an honest mistake. (*Id.* at 369-370.) Thus, Plaintiffs have not alleged sufficient facts to support a negligence claim against Sutton. Further, to the extent they contend that Sutton’s alleged bad faith in handling their claim supports the negligence cause of action, such claim would be duplicative of the 2nd cause of action. Accordingly, the demurrer to this cause of action is sustained.

3.

CASE #	CASE NAME	HEARING NAME
MCC1900422	HAACKE VS SHEA	MOTION TO BE RELIEVED AS COUNSEL

Tentative Ruling: Hearing Required.